

residence or permanent home of the child is for the time being situate :

Provided that, in the case of a child in a school or boarded out in pursuance of the principal Act or this Act, the local education authority who are making provision for his education shall continue liable to make such provision pending the determination of any question which may be referred to the Board of Education under this section.

(2) If any question arises as to the area to which a child is to be deemed to belong, that question shall be determined by the Board of Education, and the Board on determining the question may direct such financial adjustments between the local education authorities concerned as they may consider just.

Short title and commencement.

9.—(1) This Act may be cited as the Elementary Education (Defective and Epileptic Children) Act, 1914, and shall be construed with the principal Act, and that Act and this Act may be cited together as the Elementary Education (Defective and Epileptic Children) Acts, 1899 to 1914; and the Education Acts, 1870 to 1911, the Education (Choice of Employment) Act, 1910, and this Act may be cited together as the Education Acts, 1870 to 1914.

(2) This Act shall come into operation on the first day of January nineteen hundred and fifteen.

CHAPTER 46.

An Act to ensure the Purity of Milk Supplies and to regulate Dairies in Scotland, and for other purposes connected therewith. [10th August 1914.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Extent and commencement of Act.

1. This Act shall extend to Scotland only, and shall come into operation on the first day of January one thousand nine hundred and fifteen or such later date, not being later than the first day of October, one thousand nine hundred and fifteen, as the Local Government Board for Scotland may appoint.

Definition.

60 & 61 Vict.
c. 38.

2. Expressions used in this Act shall (unless such meaning is inconsistent with the context) have the meanings assigned to them in the Public Health (Scotland) Act, 1897, subject to the following additions and modifications: the word "dairy" shall include any creamery, farm, farmhouse, cowshed, byre, milk store, milk shop, or other premises from which milk is sold or supplied for sale or in which it is kept for purposes of sale, or which are used for the making of butter, cheese, or other milk products for human consumption for purposes of sale, but shall

not include premises from which a person sells milk only in small quantities and for their own consumption to persons in his employment or to neighbours; the word "dairyman" shall include any occupier of a dairy and any person carrying on the trade of cowkeeper or purveyor of milk or maker of butter or cheese or other milk products for human consumption for purposes of sale, but shall not include a person who sells milk only in small quantities and for their own consumption to persons in his employment, or to neighbours, and if any question shall arise as to whether a dairy or dairyman is entitled to exemption under this provision such question shall be determined by the Local Government Board for Scotland herein-after referred to as the Board, whose decision shall be final; and the word "milk" shall include cream, skimmed milk, separated milk, and butter milk.

3.—(1) Every local authority may, and when required by the Board shall, appoint one or more members of the Royal College of Veterinary Surgeons to act as veterinary inspector or inspectors under this Act, and shall pay to such inspector or inspectors a salary approved by the Board, and the name and address and salary of such inspector or inspectors shall be reported by the local authority to the Board immediately on his appointment.

Appointment
of veterinary
inspector and
arrangements
for bacterio-
logical exami-
nations.

(2) A veterinary inspector so appointed shall not engage in private practice in any district in which he holds office save with the consent of the Board. Two or more local authorities may, and if required by the Board shall, combine in appointing a veterinary inspector. No veterinary inspector appointed by the local authority under this Act shall be removable from office, except by or with the sanction of the Board.

(3) A veterinary inspector shall, if required by the local authority, nominate a duly qualified substitute, for whom he shall be responsible, and if the local authority shall approve of the nomination, such substitute shall, in the illness or absence of the veterinary inspector, have the same powers and duties as the veterinary inspector under this Act; and the local authority may at any time, with the consent of the Board, withdraw their approval of such substitute, and may require the veterinary inspector to name for their approval some other duly qualified substitute, and the local authority shall report to the Board the name and address of any substitute nominated and approved under this section. A local authority shall, with a view to carrying on the work pertaining to the office during the period between the resignation or death of a veterinary inspector and the appointment of a successor, have power to make an ad interim appointment for such period as the Board may approve.

(4) In districts where a veterinary inspector is not appointed in terms of this section the duties laid on a veterinary inspector under this Act shall be performed by a veterinary surgeon approved by the local authority in terms of section forty-three

of the Public Health (Scotland) Act, 1897. Where a veterinary inspector is appointed in terms of this section, references in section forty-three of the Public Health (Scotland) Act, 1897, to a veterinary surgeon shall be construed as references to the veterinary inspector so appointed.

(5) The local authority shall, subject to the approval of the Board, regulate the duties, for the purposes of this Act, of the veterinary inspector or veterinary surgeon as aforesaid, and his relations to the other officers of the local authority.

(6) Where the county council of a county appoint a veterinary inspector, being a member of the Royal College of Veterinary Surgeons, under the Diseases of Animals Acts or any other Act which they administer, the person so appointed may, and if required by the Local Government Board shall, where the local authority is a district committee of the county council, be appointed the veterinary inspector under this Act within that district, and in that event the provisions of subsections (2) and (3) of section fifty-two of the Local Government (Scotland) Act, 1889, shall apply. In the application of the said subsection the expression "county medical officer," or "county sanitary inspector," shall be construed to mean "county veterinary inspector."

(7) A local authority may make arrangements for the bacteriological or other examination of specimens and samples taken for the purposes of this Act.

Inspection of
dairies.

4.—(1) It shall be the duty of the medical officer of health or the sanitary inspector or any other duly authorised officer, as may be determined in writing by the local authority for the purpose, from time to time and once at least in every year, to inspect every dairy in the district and to report to the local authority whether such dairy is in conformity with this Act and the byelaws made in terms thereof.

(2) It shall be the duty of the veterinary inspector from time to time, and once at least in every year, to inspect the cattle in every dairy in the district and to report to the local authority the result of every such inspection.

(3) When the medical officer of health or sanitary inspector of any district is of opinion that any milk consigned to the district from any other district is contaminated or impure, or when the medical officer of health has reasonable ground for believing that any milk consigned as aforesaid is likely to cause any infectious disease or other illness, it shall be lawful for the medical officer of health, sanitary inspector, or veterinary inspector of the first-named district to inspect the dairy from which such milk has been consigned and to examine the cattle therein, and the dairyman and the persons in his employment shall give all reasonable facilities and assistance to such officers for such inspection and examination.

(4) The local authority may prescribe the form in which the reports under this section shall be made.

(5) Medical officers of health, sanitary inspectors, veterinary inspectors, or other officers authorised as aforesaid, shall be bound to make such returns and special reports to the Board in such form and at such times as the Board shall require.

5. It shall be lawful for the local authority to authorise the medical officer of health, the sanitary inspector, or any other officer, to inspect from time to time, and to examine the cattle in, any premises from which the occupier sells milk only in small quantities and for their own consumption to persons in his employment, or to neighbours, notwithstanding that such occupier is not a dairyman within the meaning of this Act, and such occupier, and persons in his employment, shall give all reasonable facilities and assistance to such officers for such inspection and examination.

*Inspection of
premises other
than dairies.*

6. Where any official of a local authority proposes to inspect any dairy in the district of another local authority, or to examine the cattle in such dairy under powers contained in this or any other Act, he shall give intimation by the readiest means available to the medical officer of health of the second-named district of the intention to make the said inspection or examination, so that, if circumstances permit, the medical officer of health, sanitary inspector, or veterinary inspector of the second-named district may be present at such inspection or examination.

*Intimation of
inspection of
dairies.*

7.—(1) It shall not be lawful for any person to carry on the trade of dairyman in any premises unless such person has been given a certificate of registration by the local authority in respect of such premises.

*Registration of
dairies.*

(2) Every application for a certificate of registration shall be in such form, and be accompanied by such information, as may be prescribed by the local authority.

(3) Any person proposing to carry on the trade of a dairyman in any premises shall, not less than one month before beginning to occupy or use such premises as a dairy, lodge with the local authority an application for a certificate of registration. The local authority shall, before considering the application, obtain a report on the premises by their medical officer of health, sanitary inspector, or other officer or person authorised in writing by them. The local authority shall intimate to the applicant their decision on the application within one month from the receipt thereof and, in case of refusal, their reasons for so refusing: Provided that in the event of the death of the holder of a certificate of registration it shall be lawful for the executors, representatives, or disponees of the person so dying, on making an application for a certificate of registration as aforesaid, to carry on the trade of dairyman within the premises in respect of which such certificate was granted, from the date of such application being made, until the decision thereon is intimated by the local authority to the applicants.

(4) Provided that it shall be lawful for the local authority to grant a certificate of registration provisionally on conditions prescribed by the local authority, but such certificate of registration shall not take effect until the applicant has satisfied the local authority that such conditions have been fulfilled.

(5) Before deciding on any application for a certificate of registration, the local authority shall consider the reports on the premises obtained by them in terms of this Act, and any representation made to them, either in writing or at a meeting of the local authority, by any person interested or by the local authority of any district to which milk from the dairy is sent or is to be sent for sale.

(6) In respect of any person or premises the local authority may refuse to grant a certificate of registration or may revoke such certificate if—

- (a) the person is or becomes unsuitable to carry on the trade of a dairyman ; or
- (b) the premises are or become unsuitable to the purposes of the trade which is proposed to be carried on, or which is carried on therein.

(7) If a certificate of registration be granted, or be refused by the local authority, or be only granted provisionally, or if a certificate of registration be revoked, any person aggrieved may appeal in a summary manner to the sheriff, who may order the local authority to grant, restore or revoke the certificate of registration, and the decision of the sheriff shall be binding, and shall be final, except where it is pronounced by a sheriff-substitute, in which case it may be appealed to the sheriff. The sheriff or sheriff-substitute may award expenses to either party.

(8) Where a person sells from a cart, van, or other vehicle within a district, milk supplied from without the district, such cart, van, or vehicle shall, for the purposes of this section, be deemed to be premises within the district.

(9) Any person who shall carry on the trade of dairyman without a certificate of registration shall be guilty of an offence under this Act.

(10) The local authority shall keep a register of dairies and dairymen within their district certificated under this Act in such form as shall be prescribed by the Board.

(11) With respect to the granting of certificates of registration in the year nineteen hundred and fifteen the following provisions shall take effect (that is to say) :—

- (a) A person carrying on the trade of dairyman without a certificate of registration under this section shall not be guilty of an offence thereunder prior to the twenty-eighth day of May nineteen hundred and fifteen or such later date as the Board may by order appoint ;

- (b) An application for a certificate of registration may be lodged with the local authority at any time after the passing of this Act, and the local authority shall immediately after receiving such application have power to obtain the necessary reports on the premises of the applicant, provided that any such application lodged before the first day of January nineteen hundred and fifteen shall, for the purposes of this section, be deemed to have been lodged on that day, and the local authority shall not be bound to intimate their decision to the applicant within a less period than three months after that day.

8.—(1) It shall be the duty of every local authority, as soon as may be after the passing of this Act, to make byelaws for their district providing— Dairy byelaws.

- (a) for the inspection of cattle in dairies ;
- (b) for prescribing and regulating the structure, lighting, ventilation (including air and floor space), cleansing, drainage, washing, and scalding facilities, and water supplies of dairies and their appurtenants ;
- (c) for the prevention of impurities in milk intended for human consumption and for securing the cleanliness and health of the cows and the cleanliness of the persons and clothing of those engaged or assisting in the business, and of the milk, cows, dairies, sculleries, boiler-houses, and all utensils, vehicles, and vessels used for the reception, conveyance, storage, or sale of milk ;
- (d) for prescribing precautions to be taken by dairymen against infection or contamination.

Such byelaws shall apply to all dairies whether constructed before or after the passing of this Act, but byelaws under paragraph (b) of this subsection may, if the Board so require or allow, differentiate between such dairies as regards structure, lighting, ventilation (including air and floor space), and drainage.

(2) The provisions of sections one hundred and eighty-three to one hundred and eighty-seven inclusive of the Public Health (Scotland) Act, 1897, as to byelaws shall apply in the case of byelaws made or to be made under this section subject to the following modifications, viz. :—

- (a) The Board shall before confirming any such byelaws obtain the concurrence of the Board of Agriculture for Scotland ;
- (b) The clerk shall furnish, on application, a copy of proposed byelaws, free of charge, to any dairyman within the district to which it is proposed that the same shall apply.

Any regulations made by the local authority under the Dairies, Cowsheds, and Milkshops Orders of 1885, 1887, and

1899, shall continue in force until the date on which byelaws made by the local authority under this section take effect, but thereafter shall cease to have force or effect.

(3) Any byelaw made by a local authority shall, if the Board so order, cease to have force or effect from the date prescribed in the order, but without prejudice to the making of a new byelaw or new byelaws.

Local authority to enforce Act

9. It shall be the duty of the local authority to enforce the provisions of this Act and of any byelaws made in terms thereof, and to exercise the powers vested in them thereby.

Procedure if local authority neglect duty.

10. If any local authority shall fail to perform any duty imposed on them by this Act, the Board may apply to the sheriff by summary petition, and the sheriff may pronounce such decree as shall in his judgment be required to enforce the provisions of this Act, and may find either party liable in expenses; or if, in the opinion of the Board, the circumstances so require, the Board may, with the approval of the Lord Advocate, apply by summary petition to either Division of the Court of Session, or during vacation or recess to the Lord Ordinary on the Bills, which Division or Lord Ordinary are hereby authorised and directed to do therein and to dispose of the expenses of the proceedings as to the said Division or Lord Ordinary shall appear to be just.

Appeal to Board by local authority to enforce Act.

11. If any local authority has reason to believe that the provisions of this Act or of the byelaws made in terms thereof are not carried out in any district from which milk is consigned to the district of the said local authority, the said local authority shall make complaint to the local authority of the district from which the milk is consigned, and if the cause of complaint be not removed within a reasonable time may apply to the Board, who shall inquire into the circumstances and shall take such proceedings as may be necessary for securing that the provisions of the Act and of the byelaws are carried out. For the purposes of such inquiry the Board shall have the same powers as they have for the purposes of an inquiry under the Public Health (Scotland) Act, 1897.

Regulations by Board.
7 Edw. vii.
c. 32.

12.—(1) The Board shall make regulations under the Public Health (Regulations as to Food) Act, 1907, for the prevention of danger arising to public health from the importation of milk, butter, cheese, or other milk products intended for sale for human consumption.

(2) The Board, with the concurrence of the Board of Agriculture for Scotland, may from time to time make such general or special orders as they think fit for carrying this Act into effect, including orders for the following purposes or any of them:—

(a) The measures to be taken for cooling milk and otherwise for protecting milk against infection or contamination:

- (b) The prohibition of the use of colouring matter in milk intended for sale for human consumption, and of the addition to milk, other than buttermilk, intended for sale for human consumption, of skimmed or separated milk or water or any other substance, and of the sale for human consumption of milk to which such an addition has been made :
- (c) The prohibition of the use of the word "milk" as the name of any substance not wholly derived from the mammary gland of an animal when such substance is offered for sale, and of the use of the words "butter" or "cheese" as the name of any substance not manufactured from milk so derived when such substance is offered for sale :
- (d) The manner of conveyance of milk intended for sale for human consumption, including the proper fastening, sealing, and identification of churns and vessels used for such conveyance :
- (e) The regulation of the mixing of the milk in one such churn or vessel with the milk in another such churn or vessel :
- (f) The labelling or distinctive marking of the receptacles of milk for sale for human consumption.

(3) Section two of the Public Health (Regulations as to Food) Act, 1907, shall apply to general or special Orders made by the Board under this Act.

13.—(1) It shall be an offence under this Act for any person to consign, sell, offer, or expose or keep for sale for human food, or to use or suffer to be used in the manufacture of products for human consumption, the milk of any cow which is suffering from tuberculosis with emaciation, or from tuberculosis of the udder, or from any sore on the teats accompanied by suppuration or bleeding, or from any disease liable to infect or contaminate the milk, or of any cow which is giving tuberculous milk, unless he proves that he did not know and had no reason to suspect that the milk was the milk of such a cow.

Milk of diseased cow not to be sold.

(2) Where milk is sold or exposed or kept for sale, it shall be presumed to be sold or exposed or kept for sale for human consumption, or for use in the manufacture of products for human consumption unless the contrary is proved.

14. Every dairyman who has in his dairy any cow which appears to be suffering from any sore on the teats accompanied by suppuration or bleeding, or from any disease liable to infect or contaminate the milk, or any cow which to his knowledge is giving tuberculous milk, shall forthwith give written notice thereof to the local authority stating the situation of the dairy.

Dairyman to notify disease, &c.

15. If any person resident at or employed in connection with any dairy, or who resides in the same house as any person so employed, shall show symptoms of any infectious disease,

Notification of employees if suffering from illness.

the dairyman, on becoming aware thereof, shall forthwith report to the medical officer of health for the district the existence of such illness.

Notification to
other medical
officers.

16. The medical officer of health of the district in which milk is produced shall forthwith furnish to the medical officer of health of the district to which the milk is consigned, or in which it is sold or offered or exposed or kept for sale for human food, information regarding all cases of infectious disease of which he is cognisant occurring amongst the persons employed or in the families of persons employed, or amongst the persons residing at the dairy from which the milk is consigned, and for the purposes of this section the dairyman shall furnish such first-mentioned medical officer of health with a list of the districts to which his milk is consigned.

Persons suffer-
ing from
disease not to
assist in dairy.

17.—(1) It shall not be lawful for any person to milk cows or to handle milk vessels who is suffering from or showing symptoms of any infectious disease, or who is suffering from any suppurating sore or from sore throat or diarrhoea, and has not been authorised by a certificate from a duly qualified medical practitioner bearing that he may milk cows or handle milk vessels without risk of spreading disease; and it shall not be lawful for a dairyman to allow any such person so to do unless authorised as aforesaid. The holder of any such certificate shall, if so required, produce it for inspection by the medical officer of health.

(2) It shall not be lawful for any person who has recently been in contact with a person who is suffering from any infectious disease, or for any person who resides in a house where any infectious disease exists, to milk cows or to handle milk vessels or in any way to take part or assist in the conduct of the trade or business of a dairyman, unless proper precautions against spreading such disease are taken; and it shall not be lawful for a dairyman to allow any such person so to do without taking such precautions.

Procedure for
the stoppage of
milk supplies

18.—(1) If the medical officer of health of any district has evidence that any person in the district is suffering from any infectious disease or any illness attributable to milk supplied within the district from any dairy situated within the district, or that the milk from any such dairy is likely to cause any such disease or illness to any person consuming the milk, such medical officer shall visit the dairy, and the medical officer shall examine the dairy and every person engaged in the service thereof, or resident upon the premises, or who may be resident in any premises where any person employed in such dairy may reside, and shall, if necessary, require the veterinary inspector to accompany him and to examine the animals therein, and the medical officer shall forthwith submit to the local authority a

report of the results of his examination together with a report by the veterinary inspector if such inspector has accompanied him.

(2) If the medical officer of health of any district has evidence that any person in the district is suffering from any infectious disease or any illness attributable to milk from any dairy without the district, or that the milk from any such dairy is likely to cause any such disease or illness to any person residing in the district, such medical officer shall forthwith intimate the same to the medical officer of health of the district in which such dairy is situated, with a statement of the evidence in his possession, and the last-mentioned medical officer shall be bound, as soon as practicable, to examine the dairy and, where the case so requires, every person engaged in the service thereof or resident upon the premises, or who may be resident in any premises where any person employed in such dairy may reside, and shall, if necessary, require the veterinary inspector of the district to accompany him and to examine the animals therein, previous notice of the time of such examination having been given to the medical officer of the first-mentioned district in order that he and the veterinary inspector of that district may, if they so desire, be present at the examinations referred to, and the medical officer of the second-mentioned local authority shall forthwith submit to that local authority a report of the results of his examination together with a report by the veterinary inspector if such inspector has accompanied him.

(3) The local authority of the district in which the dairy is situated shall meet forthwith, due notice of the meeting, together with a copy of all reports on the case, having been given to the dairyman, who shall be entitled to appear at the meeting, and shall consider the report or reports, together with any other evidence that may be submitted by parties concerned, and shall either make an order requiring the dairyman not to supply any milk or butter from the dairy until the order has been withdrawn by the local authority or resolve that no such order is necessary, provided that the medical officer shall, pending the decision of the local authority under this subsection, have power to make an interim order requiring the dairyman not to supply any milk or butter from the dairy. It shall be in the power of the local authority to make an order applicable to the whole or part of the dairy or to all or any of the cows therein as the local authority may, in the circumstances, see fit. The order shall specify the grounds on which it is made.

(4) Where proceedings are taken or any order is made under this section by the local authority of a district other than a burgh, it shall not be competent to appeal to the county council against the said proceedings or against said order.

(5) Where any such order applies to a dairy from which milk is supplied to any district other than that in which it is

situated, the local authority shall forthwith transmit a copy of the order to the local authority of every such district.

(6) Any such order shall be forthwith withdrawn on the local authority, or their medical officer on their behalf, being satisfied that the milk from the dairy is no longer likely to cause infectious disease, and the local authority or medical officer shall forthwith intimate such withdrawal to the dairyman and to the local authority of every district within which milk is supplied from the dairy.

(7) It shall be open to any local authority or dairyman aggrieved by any such resolution or order, or withdrawal of order, or by the failure to make such an order, to appeal in a summary manner to a sheriff having jurisdiction in the district within which the dairy is situated, and the sheriff may either make an order requiring the dairyman to cease from supplying milk, or may vary or rescind any order which has been made by the local authority, and he may at any time withdraw any order made under this section. Pending the disposal of any such appeal, the order shall remain in force unless previously withdrawn.

(8) Any proceedings in respect of a contravention of any order under this section shall be taken before a sheriff having jurisdiction in the district where the dairy is situated.

(9) A dairyman shall not be liable in damages for breach of contract if the breach be due to an order under this section.

(10) If any dairyman sustain any damage by reason of an order under this section, and the damage has not arisen by reason of his default, the local authority making the order shall be liable to pay to the dairyman full compensation for such damage. If the order arose out of proceedings under subsection (2) of this section, the local authorities therein mentioned shall be jointly liable to pay in equal proportions full compensation to the dairyman for such damage. For the purpose of determining the amount of compensation payable under this section the provisions of section one hundred and sixty-four of the Public Health (Scotland) Act, 1897, shall apply. Where the districts mentioned in subsections (2) and (3) aforesaid are not within the jurisdiction of the same sheriff, it shall be competent for the sheriff of the district within which the dairy is situated to determine any action for recovery of compensation under this section.

Dairymen to
produce list of
customers and
other informa-
tion

19. Whenever it shall be certified to the local authority, by the medical officer of health, that the outbreak or spread of infectious disease or any other illness within the district is, in the opinion of such medical officer, attributable to milk supplied by any dairyman, whether wholesale or retail, or to milk supplied by one or more of several such dairymen, whether wholesale or retail, or that infectious disease or any other illness is likely to be spread within the district by the milk so supplied,

or that any milk so supplied within the district is contaminated or impure—

- (1) The local authority may require such dairyman, whether within or without the district, to furnish to them within a time to be fixed by them, being not less than twenty-four hours, a full and complete list of the names and addresses of all his customers so far as known to him, and such dairyman shall furnish such list accordingly, and the local authority shall pay to him for every such list at the rate of sixpence for every twenty-five names contained therein, such list to be treated as a confidential document and to be made use of only for the purposes of this Act; and any person who shall wilfully or knowingly offend against this enactment shall be guilty of an offence against this Act:
- (2) The local authority may require such dairyman to furnish to them, within a time to be fixed by them, a full and complete list of the names and addresses of the farmers, dairymen, or other parties from whom, during a period to be specified, the milk, or any part of the milk which he sells or distributes was obtained, and also, if required, all necessary information to attest the consignment or delivery of such milk during such period, and such list and information shall be treated as confidential and shall be made use of only for the purposes of this Act; and every person who shall wilfully or knowingly offend against this enactment shall be guilty of an offence against this Act:
- (3) In any case where the person liable to any penalty under this section is not resident within the district such penalty may be sued for, at the instance of the procurator fiscal, before the sheriff of the county in which such person is either resident or carries on business.

20. Within their district the local authority and any officers appointed by them for the execution of this Act shall have power to enter, inspect, and examine at all reasonable times any dairy, and for the purposes of this Act the medical officer of health shall have power to examine any person employed or residing at any dairy and to require such person to provide him with such specimens of mucus, urine, or fæces as he may require for the purpose of bacteriological examination, and the veterinary inspector shall have power to examine the cattle in any dairy, and every dairyman and the persons in his employment shall give all reasonable facilities and assistance to the local authorities and their officers in the execution of this Act. An officer of the Board shall have the like powers of entry, inspection, and examination.

Power to enter
and inspect
dairies, &c

Power to take
samples of
milk.

21. The medical officer of health or sanitary inspector or veterinary inspector may, and if required by the medical officer of health of the district to which the milk is consigned or in which it is sold or exposed or deposited for sale, shall, personally or by a person exhibiting his authority in writing, take samples of milk for examination, such examination shall, in the case of samples taken at the request of the medical officer of health of the district to which the milk is consigned, or in which it is sold or exposed or deposited for sale, be made by or at the cost of the local authority of that district, and the said local authority shall pay all costs incurred by the said medical officer or sanitary inspector or veterinary inspector in obtaining and transmitting such samples for examination. Any dispute as to the amount of such costs shall be determined by the Board whose decision shall be final. The medical officer of health or sanitary inspector or veterinary inspector, or person authorised as aforesaid, may at any reasonable time require any cow to be milked in his presence, and may take samples of the milk, or, if he so require, a sample from any particular teat, and may also take samples of the fæces and urine of any cow or of any abnormal discharge of any cow. An officer of the Board shall have the like powers as are conferred on a medical officer of health by this section.

Power for
veterinary
inspector to
apply tuber-
culin test

22. A veterinary inspector may apply to any cow in any dairy within the district the tuberculin or other reasonable test for the purpose of discovering whether such cow is suffering from tuberculosis, provided that no such test shall be applied except with the previous consent in writing of the owner of such cow.

Local autho-
rity may
appoint com-
mittees.

23. Any local authority may from time to time appoint a committee or committees for the exercise of all or any of their powers under this Act, whereof two shall be a quorum, unless a larger quorum be specified in their appointment.

Penalties.

24.—(1) Every person who shall fail to comply with any of the requirements of this Act or of any order made thereunder, or who obstructs any person acting under the authority or employed in the execution thereof, shall be guilty of an offence under this Act. Every person who shall be guilty of an offence under this Act shall be liable for every such offence, except where otherwise provided, to a penalty not exceeding ten pounds, and, if such offence shall continue, to a further penalty not exceeding five pounds for every day during which the offence continues.

(2) In addition to any pecuniary penalty imposed on any dairyman for an offence against this Act, or against any order or byelaw made under this Act, the sheriff may by summary order suspend his certificate of registration in respect of any premises for such period as may be specified in the order, or cancel such certificate, but in the latter case without prejudice to the right of the dairyman to make application for a new certificate of

registration. The dairyman shall be entitled to appeal against the order of the sheriff to the Lord Ordinary on the Bills in manner provided by section one hundred and fifty-six of the Public Health (Scotland) Act, 1897.

25. Except as otherwise provided penalties imposed under this Act shall be recoverable summarily before the sheriff having jurisdiction in the district in which the dairy is situated. Recovery of penalties

26. All expenses incurred by the local authority for the purposes of this Act shall be chargeable on the public health general assessment leviable under the Public Health (Scotland) Act, 1897. Expenses of local authority

27. A warranty or invoice shall not be available as a defence to any proceedings under the Sale of Food and Drugs Acts, 1875 to 1907, where the article in respect of which the proceedings are taken is milk. Amendment of Sale of Food and Drugs Acts as to warranties in the case of milk.

28. A local authority may, subject to the consent of the Board, establish and thereafter maintain depôts for the sale of milk specially prepared for consumption by infants under two years of age. For the purposes of this section a local authority shall have the same powers of acquiring land and borrowing money as they have for the purpose of providing hospitals under the Public Health (Scotland) Act, 1897. Milk depôts

29.—(1) Where any premises, which with the consent, express or implied, of the landlord or his agent are used by the tenant as a dairy, by reason of this Act or any byelaw or regulation made under this Act cannot continue to be so used unless the premises are altered or improved, the tenant may make such alterations or improvements, including the introduction of a sufficient water supply for the purposes of the dairy, as are reasonably necessary to enable the premises to continue to be so used, and recover from the landlord such proportion of the expenses incurred as may be just and equitable under the circumstances of the case regard being had to the terms of any contract between the parties : Costs of structural alterations

Provided that the tenant, before beginning to execute such alterations or improvements, shall give to the landlord notice in writing of his intention to execute the alterations or improvements together with particulars thereof, and shall not proceed with the execution thereof if the landlord within twenty-eight days after receipt of the notice undertakes to execute the necessary alterations or improvements within a reasonable time, subject to the recovery from the tenant of such proportion of the expense incurred as may be just and equitable under the circumstances of the case, regard being had to the terms of any contract between the parties, or if the landlord requires that it shall be determined as provided for in subsection (2) of this section whether there is any reasonable necessity for such alterations or improvements

or what proportion of the expense shall be paid by landlord and tenant respectively.

(2) Any question as to the reasonable necessity of any alteration or improvement or as to the proportion of the expenses to be paid by the landlord and tenant respectively in default of agreement shall be determined by a single arbiter in accordance with the provisions set out in the Second Schedule to the Agricultural Holdings (Scotland) Act, 1908.

8 Edw VII.
c. 64.

(3) An arbiter shall, so far as practicable, act on his own knowledge and experience, and shall not, except in such cases as the Board of Agriculture for Scotland otherwise direct, hear counsel.

(4) Section thirteen of the Agricultural Holdings (Scotland) Act, 1908, which enables the landlord to obtain an order charging a holding with repayment of the amount paid or expended by him in respect of an improvement to which that section refers, shall apply to any payment or expenditure made or incurred by a landlord in respect of any alteration or improvement to which this section refers executed by the landlord or a tenant on a holding to which the Agricultural Holdings (Scotland) Act, 1908, applies: Provided that this section shall not apply in the case of landholders within the meaning of the Small Landholders (Scotland) Act, 1911.

1 & 2 Geo. V
c. 49.

Service of
notices.

30. Any notice, order, or other intimation required or authorised to be served under this Act may be served in the manner provided by section one hundred and fifty-nine of the Public Health (Scotland) Act, 1897.

Repeal of Acts

31.—(1) The Acts specified in the schedule to this Act are hereby repealed to the extent mentioned in the third column of that schedule, and so much of any general Act as is inconsistent with this Act is also hereby repealed.

Nothing in this Act shall supersede, prejudice, or affect the provisions of any local Act applicable to any burgh, but the provisions of this Act shall operate to confer additional powers on the local authorities of such burghs.

(2) The Dairies, Cowsheds, and Milkshops Orders of 1885, 1887, and 1899, shall, save as herein-after provided, cease to have force or effect after the commencement of this Act, provided that the Board may by Order prescribe a later date till which the whole or any part of such Orders shall continue in force in the district of any local authority, and that such Order may, notwithstanding the date of the commencement of this Act, be made by the Board at any time after the passing thereof.

29 & 30 Vict.
c. 17.

(3) The Cattlesheds in Burghs (Scotland) Act, 1866, shall not apply to any premises which are required to be registered in terms of this Act.

Short title.

32. This Act may be cited as the Milk and Dairies (Scotland) Act, 1914.

SCHEDULE.

Section 31

ENACTMENTS REPEALED.

Session and Chapter	Short Title	Extent of Repeal.
41 & 42 Vict. c. 74.	Contagious Diseases (Animals) Act, 1878.	The whole Act as applying to Scotland.
49 & 50 Vict. c. 32.	Contagious Diseases (Animals) Act, 1886.	The whole Act as applying to Scotland.
60 & 61 Vict. c. 38	Public Health (Scotland) Act, 1897	Sections 60, 61.
3 Edw. 7. c. 33.	Burgh Police (Scotland) Act, 1903	Sections 83, 84, 85, 86, 87, 88, 89, 90, 91, 92.

CHAPTER 47.

An Act to consolidate the Law relating to Deeds of Arrangement. [10th August 1914.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.**APPLICATION OF ACT.**

1.—(1) A deed of arrangement to which this Act applies shall include any instrument of the classes hereinafter mentioned whether under seal or not—

Deeds of arrangement to which Act applies.

(a) made by, for or in respect of the affairs of a debtor for the benefit of his creditors generally ;

(b) made by, for or in respect of the affairs of a debtor who was insolvent at the date of the execution of the instrument for the benefit of any three or more of his creditors :

otherwise than in pursuance of the law for the time being in force relating to bankruptcy.

(2) The classes of instrument hereinbefore referred to are—

(a) an assignment of property ;

(b) a deed of or agreement for a composition ;